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Case Name: THE MASAO SUMIDA 2013 TRUST, dated October 24, 2013, as amended and restated on August 5, 2019

Case No.: 21PR190185

INTRODUCTION

In May 2021, Petitioners Leland Sumida, Ione Low, and Noreen Sumida (“Petitioners”) initiated this case by filing a petition to determine the validity of the second amendment to the Masao Sumida 2013 Trust, executed on August 5, 2019. The amendment changed the trust disposition such that Jarred Sumida (“Respondent”) would receive the entire trust estate upon the death of the settlor, Masao Sumida (“Decedent”).¹ In October 2022, Petitioners filed a petition to remove and surcharge Respondent as trustee.

On June 13, 2022, Respondent filed a petition to compel Leland Sumida to account as former trustee of the Masao Sumida and Eiko Sumida Living Trust and as attorney-in-fact for Decedent while Decedent was alive.²

Currently before the court is Respondent’s motion for leave to file a combined amended petition and cross-complaint. The motion is unopposed.

Trial is presently set for June 15, 2026.

DISCUSSION

I. Legal Standards

A. Leave to Amend

Code of Civil Procedure sections 473, subdivision (a), and 576³ provide that the court “may, in the furtherance of justice,” allow a party to amend any pleading. “It is well established that ‘California courts have “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” [Citation.] Indeed, “it is a rare case in which ‘a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.’ ”[Citation.]’ [Citation.] Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail. [Citation.]” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.) Generally, leave to amend must be liberally granted [citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. [Citation.]” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

¹ Petitioners are Decedent’s children and Respondent is Decedent’s grandchild.

² Eiko Sumida, Decedent’s wife, passed away in 2017. Decedent passed away in 2021.

³ All further undesignated statutory references are to the Code of Civil Procedure.

“ ‘Leave to amend a complaint is thus entrusted to the sound discretion of the trial court. . .’ [Citations.]” (*Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) “[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment. [Citation.]” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) The court does not abuse its discretion by denying leave to amend where the facts stated do not constitute a cause of action. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654.)

B. Leave to File a Cross-Complaint

With respect to permissive cross-complaints, a party against whom a cause of action has been asserted in a complaint may file a cross-complaint against another person alleged to be liable if the cause of action asserted in the cross-complaint arises out of the same transaction or occurrence as the cause of action in the original complaint. (§ 428.10, subd. (b).) A party can file a cross-complaint against parties other than the plaintiff without leave of court at any time before the court has set a date for trial. (§ 428.50, subd. (b).) But, where the trial date has been set, the party must seek leave of court to file a cross-complaint. (§ 428.50, subd. (c).)

With respect to compulsory cross-complaints, “[e]xcept as otherwise provided by statute, if a party against whom a complaint has been filed and served fails to allege in a cross-complaint any related cause of action which (at the time of serving his answer to the complaint) he has against the plaintiff, such party may not thereafter in any other action assert against the plaintiff the related cause of action not pleaded.” (§ 426.30, subd. (a).)

But, “[a] party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.” (§ 426.50.)

II. Analysis

Respondent seeks to file a first amended petition and cross-complaint. The petition to be amended is Respondent’s June 2022 petition for accounting.

Rules of Court, rule 3.1324(b), governing motions to amend, requires a declaration which explains “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” Here, Respondent has provided the declaration of his counsel addressing these elements.

The amended petition “substitutes Ione K. Low and Noreen Sumida as true-name respondents in place of Does 1 and 2 on the causes of action for Financial Elder Abuse (FAP ¶ 88), Conversion (FAP ¶ 89), Punitive Damages (FAP ¶ 98), Attorney’s Fees (FAP ¶ 99), and Probate Code § 259 Remedies (FAP ¶ 100; Prayer ¶¶ 16–17); (ii) adds causes of action for Physical Elder Abuse under Welfare & Institutions Code §§ 15610.05, 15610.07, 15610.57, and 15610.53 (FAP ¶ 90); Conspiracy (FAP ¶ 96); and Aiding and Abetting (FAP ¶ 97); (iii) adds

specific factual allegations concerning threats and verbal abuse (FAP ¶¶ 31-34), the draining of Masao's Wells Fargo bank account (FAP ¶¶ 35-48), and the theft of Masao's mail (FAP ¶¶ 49-52); (iv) adds specific prayer items for compensatory damages under Welf. & Inst. Code § 15657.5(a) (Prayer ¶ 10), punitive damages under Welf. & Inst. Code § 15657.5 and Civil Code § 3294 (Prayer ¶ 11), treble damages under Civil Code § 3345(b) (Prayer ¶ 12), prejudgment interest (Prayer ¶ 13), and restitution and disgorgement (Prayer ¶ 14); and (v) includes a demand for jury trial on the legal causes of action (FAP at p. 29)." (Declaration of Scott Fraser in Support of Motion for Leave to Amend ("Fraser Decl."), ¶ 27.)

Respondent's counsel declares that he learned of the basis for the amendments in January 2026, when Petitioners produced text messages in response to Respondent's discovery requests and in March 2026 when Respondent took the depositions of Ione Low and Leland Sumida. (Fraser Decl., ¶¶ 11-25.) Finally, Respondent's counsel declares that the additions to the amended petition and cross-complaint concern transactions made during the same period of February to April 2021 when Decedent received caregiver services and the 2019 restatement that are the subject of the other petitions filed in this case. (Fraser Decl., ¶ 33.) He contends that no new discovery is anticipated. (*Ibid.*)

Here, Petitioners do not oppose the motion and, therefore do not point to any prejudice in granting the motion, nor do they contend that the added causes of action do not relate to the same transaction or occurrence as the other pleadings in this case. Accordingly, the motion is GRANTED.

CONCLUSION

The motion for leave to file a first amended petition and cross-complaint is GRANTED.

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Case Name: THE MEZZETTI FAMILY LIFE INSURANCE TRUST

Case No: 25PR200331

INTRODUCTION

Petitioner Jose Miguel Mezzetti (“Petitioner”) initiated this action for construction of the Mezzetti Family Life Insurance Trust (“MFLIT”). The MFLIT was created by husband and wife settlors Constance Mezzetti and Robert Mezzetti, Sr. (“Settlors”) on September 1, 1994. In or around September 1994, Settlers also applied for a Guardian whole life insurance policy to fund the MFLIT. Petitioner contends that the MFLIT was irrevocable from its inception and he seeks an order determining same. He also seeks an accounting and an order that Respondent Robert Mezzetti, II (“Respondent”), trustee of the MFLIT, may not use trust funds in the instant litigation.

Currently before the court is Respondent’s demurrer to Petitioner’s amended petition filed February 9, 2026. Respondent filed his demurrer on April 1, 2026. Petitioner filed an opposition, Respondent filed a reply and evidentiary objections, and Petitioner filed a response to Respondent’s evidentiary objections.

BACKGROUND

Settlors separated in the late 1970s but never divorced. Robert, Sr.⁴ established extramarital romantic relationships with Kathy Hatcher and others. (*Ibid.*) According to the amended petition, Settlers sought to protect their assets from so-called “Marvin v. Marvin”⁵ claims and professional malpractice claims due to Robert, Sr.’s work as an attorney.

Petitioner alleges that the 2002 Unsigned MFLIT Instrument was provided to Petitioner and allows for the distribution of the Gurdian Life Insurance Policy in equal shares. Petitioner and Respondent received and signed Acknowledgement of Notice Receipt of *Crummey*⁶ Demand Rights. On August 5, 2015, Robert Sr. and Respondent as trustee and power of attorney for Constance who was incapacitated in 2006, signed a Declaration of Lost Instrument indicating that the original MFLIT had been lost.

Constance passed away on March 11, 2017. No trustee’s notice pursuant to Probate Code section 16061.7 was sent concerning the MFLIT. Robert Sr. Died on October 22, 2024. Petitioner alleges Respondent submitted a death benefit claim to the Guardian Policy which was paid out on December 2, 2024.

⁴ Because some of the individuals involved in this case share the same last name, the court will refer to them by their first names. No disrespect is intended.

⁵ *Marvin v. Marvin* (1976) 18 Cal.3d 660.

⁶ *Crummey v. Commissioner* (9th Cir. 1968) 397 F.2d 82.